

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Micki Bloom	Team: Team # 5	CCRB Case #: 200718145	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 12/12/2007 8:30 PM	Location of Incident: East 53rd Street & 3rd Avenue	18 Mo. SOL 6/12/2009	Precinct: 17
Date/Time CV Reported Wed, 12/12/2007 8:30 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 12/18/2007 3:15 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Adriano Deleon	02580	940069	017 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Ramirez	12983	934089	017 PCT
2. SGT Joel Polanco	00890	911361	017 PCT
3. POM Robert Amrhein	29982	901113	017 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Adriano Deleon	Discourtesy: PO Adriano Deleon spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)	A . Unsubstantiated
B . POM Adriano Deleon	Force: PO Adriano Deleon used physical force against § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated

Synopsis

On December 12th, 2007 at approximately 8:30 PM § 87(2)(b) was driving into Manhattan with his mother § 87(2)(b). They were stuck in traffic going northbound on 3rd Avenue for over an hour, when they pulled over next to a police vehicle parked on 3rd Avenue and East 53rd Street. § 87(2)(b) exited the passenger seat of the car and walked around the front of the vehicle to address PO Adriano Deleon in the front passenger seat of the vehicle. She told him about the traffic jam behind him and asked him to radio for traffic control to respond. PO Deleon exited the vehicle and allegedly began to “scream” at § 87(2)(b) using the word “fuck” multiple times (**Allegation A**). Using both hands, PO Deleon then allegedly pushed § 87(2)(b) on her chest and told her to “get in the fucking car.” § 87(2)(b) who had exited the car at this point and was standing by the driver’s side of the vehicle, asked the officer why he was assaulting his mother. PO Deleon then allegedly pushed § 87(2)(b) as well (**Allegation B**). § 87(2)(b) informed PO Deleon that she intended to file a complaint against him and she and § 87(2)(b) and § 87(2)(b) retreated to their vehicle where § 87(2)(b) called 911. SGT Joel Polanco responded to the scene. After speaking with PO Deleon and PO Ramirez, SGT Polanco spoke with § 87(2)(b) and § 87(2)(b). They were placed in handcuffs and charges with obstruction of governmental administration and disorderly conduct for blocking traffic.

§ 87(2)(g)
§ 87(2)(b) **Allegation A** is recommended to be closed as **Unsubstantiated**. § 87(2)(g)
§ 87(2)(b) **Allegation B**, therefore, is recommended to be closed as **Unsubstantiated**.

Summary of Complaint

§ 87(2)(b) filed this complaint with IAB on December 12th, 2007 (encl.4a-4b). It was referred to the CCRB on December 18th, 2007 (encl.5a-5b). § 87(2)(b) provided a phone statement on December 21st, 2007 (encl.6a-6b). On January 7th, 2007 § 87(2)(b) was interviewed at the CCRB (encl.7a-7e). § 87(2)(g).

§ 87(2)(b) is a § 87(2)(b) § 87(2)(b) white female with blonde hair and blue eyes. She lives in Manhasset, NY and is the Vice President of § 87(2)(b). On December 12th, 2007 at approximately 8:30 PM, § 87(2)(b) and her son § 87(2)(b) were driving into Manhattan. § 87(2)(b) was driving § 87(2)(b)s 2007 black Cadillac Escalade north on 3rd Avenue and they were stuck at a standstill in traffic for over an hour. There was “literally mayhem” going on in the street, with people getting out of their cars and banging on other vehicles.

As their car approached East 51st Street, § 87(2)(b) noticed a police car to the left and told § 87(2)(b) to pull over. § 87(2)(b) got out of the passenger seat of the car and walked around the front of the vehicle to address the officer in the front passenger seat of police car, identified via investigation as PO Adriano Deleon. She could see PO Deleon was “distraught” before she even began to speak to the officer and that from the moment she started to speak to him he was “irate.”

PO Deleon rolled down his window when he saw § 87(2)(b) standing by it. § 87(2)(b) told him about the traffic jam behind him and stated that if there was an ambulance stuck, no one would be able to get through. She asked him to radio for traffic control to respond. § 87(2)(b) was speaking at a slightly raised level because they were on the street and it was loud but denied that she ever screamed. She also stated that at no point during the incident did either she or § 87(2)(b) curse.

PO Deleon got out of the car and began to “scream” at § 87(2)(b) saying “who are you? Get in the fucking car” and used the word “fuck” multiple times. At some point, PO Michael Ramirez, the officer in the driver’s seat of the patrol car, exited the vehicle stood uninvolved by his vehicle.

After three minutes of speaking to § 87(2)(b) PO Deleon used both hands and pushed her on her chest just below her clavicle, causing § 87(2)(b) to move backwards and continued to tell her to “get in the fucking car.” § 87(2)(b) had exited the car at this point and was standing by the driver’s side of the vehicle. § 87(2)(b) was scared and got back in her vehicle unassisted. She heard § 87(2)(b) say, “What are you doing to my mother? Why are you assaulting her?” § 87(2)(b) then observed PO Deleon push § 87(2)(b) once in the same way he had pushed her. She told him to get back in the car, which he did.

§ 87(2)(b) and § 87(2)(b) were sitting in the car for at least four minutes, during which time § 87(2)(b) called 911 and was either transferred to or called 311. She reported that there was an officer

out of control. § 87(2)(b) had told PO Deleon, “I don’t believe what you’ve just done, I’m calling 911,” and noted that he saw her while she was talking on her phone inside the car.

In her interview at the CCRB, § 87(2)(b) stated that PO Deleon returned to the car, approached the passenger side and asked them to step out of the vehicle. § 87(2)(b) got out of the car to speak to him and he asked her for her license. She handed him her wallet and he removed the license and returned the wallet to her. PO Deleon then requested § 87(2)(b) s license and he complied.

§ 87(2)(b) could see PO Deleon’s name and badge number and did not need to ask for his information, but that she heard § 87(2)(b) ask PO Deleon for his badge number. She recalled that a crowd of approximately fifteen people gathered at some point during the incident and that one woman “aggressively” yelled “What are you cops doing? What’s wrong with you?”

Approximately five minutes later, SGT Joel Polanco arrived at the scene on foot from behind the vehicle. SGT Polanco first spoke to PO Deleon and PO Ramirez. He then approached § 87(2)(b) and § 87(2)(b) and spoke to them for “two seconds.” He did not ask any witnesses or civilians on the sidewalk any questions.

In her statement to the CCRB, § 87(2)(b) added that either SGT Polanco or PO Deleon said, “Because you made that phone call I’m going to have to arrest you.” PO Deleon placed § 87(2)(b) and § 87(2)(b) under arrest, put them into the back of his vehicle and drove them to the station house on East 53rd Street and Lexington Avenue while PO Ramirez drove § 87(2)(b) s car to the same location. While at the station house, she did not speak with PO Deleon.

Results of Investigation

Victim Statements

§ 87(2)(b)

§ 87(2)(b) provided a phone statement on December 26th, 2007 (encl.9a-9b). He was interviewed at the CCRB on January 7th, 2008(encl.10a-10e). § 87(2)(g)

§ 87(2)(b) is a § 87(2)(b) white male who stands § 87(2)(b) and weighs § 87(2)(b). He has brown hair and brown eyes. § 87(2)(b) resides in Manhattan and is the Director of Operations of § 87(2)(b). On December 12th, 2007 at approximately 8:30 PM, § 87(2)(b) was driving with his mother § 87(2)(b) northbound on 3rd Avenue in Manhattan in § 87(2)(b) s black 2007 Cadillac Escalade towards § 87(2)(b) s apartment. They were around East 48th or East 49th Street and had been stuck in traffic for at least half an hour. They finally crossed East 53rd Street and § 87(2)(b) noticed a marked police vehicle parked to the right of another parked vehicle in the second westernmost lane on 3rd Avenue between East 53rd and East 54th Streets. The area was well lit despite it being dark out, with lights from an office building and surrounding cars.

§ 87(2)(b) pulled his car up next to the police vehicle, rolled down his window and motioned to the two male officers inside. § 87(2)(b) observed that they were “both in the middle of writing up an accident” but stated that there was no accident actually present at the scene. He noted that there were three or four other people who approached the officers to complain about the traffic.

The officer in the passenger seat, PO Adriano Deleon, rolled down his window and § 87(2)(b) addressed him to alert him of the “serious situation” of the traffic jam. He was talking “pretty low” and was not being “confrontational or anything like that.” § 87(2)(b) could not recall PO Deleon’s specific response but stated that it was along the lines of “we’re in the middle of something, it’s not our job.”

§ 87(2)(b) was also attempting to address the officer from the passenger seat and approximately 30 seconds to a minute later got out of the car and walked around to the space between her car and the officer’s car to speak to PO Deleon at his window. § 87(2)(b) s back was against § 87(2)(b) s car door and she was slightly bent down to address the officer for approximately 30 seconds. § 87(2)(b) described her voice as “frustrated,” and stated she was not screaming but speaking in a “loud tone.” PO Deleon “snapped” and “threw” open the door, touching her on the hip and moving her along with it. PO Deleon’s partner PO Michael Ramirez had not been speaking but got out of the driver’s side of the vehicle shortly after.

PO Deleon said in a raised voice, “What the fuck are you doing lady, get in the fucking car, we are fucking in the middle of a job, who are you to fucking talk to us like that.” Over the course of the rest of the incident PO Deleon used the word “fuck” approximately a dozen to two dozen times. § 87(2)(b) was

“getting agitated” by the officer’s cursing but did not curse in return or raise her hands to “get physical with the officer.”

After a few seconds, PO Deleon grabbed § 87(2)(b) s left arm with his left hand and attempted to “push” or “move” her around the front of the car towards the passenger side of the vehicle. As he was doing so, she was pushed backwards approximately two or three feet into the third lane. § 87(2)(b) asked him to take his hands off of her and § 87(2)(b) stated that they were both “in shock.”

PO Deleon “grabbed” § 87(2)(b) several times, with her pulling back and him continuing to put his hands on her and move her around the car. PO Deleon then opened the car door and pushed her into the vehicle, closing the door “with force” using both hands before she was fully in the car. § 87(2)(b) reports that while she was in the car, § 87(2)(b) called 311 to report what was going on. He noted that she had called 311 approximately two times previously while they were still stuck in traffic and attempting to alert the authorities.

§ 87(2)(b) had exited the vehicle when he observed PO Deleon pushing his mother around the car and told the officer that there was no reason to “assault” his mother. He was approximately three or four feet away from the officer on the left side of the car. PO Deleon told him to “get the fuck back in the car,” which he did. He got out for a second time when he observed PO Deleon continue to push his mother towards oncoming traffic. § 87(2)(b) went to talk to PO Ramirez and as he was doing so, PO Deleon circled back around the front of the vehicle towards § 87(2)(b) and pushed him by the arm and the chest three or four times using “pretty good force” back towards the vehicle. § 87(2)(b) did not resist and got back in the car.

§ 87(2)(b) rolled down the window and told PO Deleon that she wanted his badge number and name. She asked “a couple times” for this information. PO Deleon was standing in front of the car and said, “If you want my badge number, I want your license.” In his CCRB statement, § 87(2)(b) stated that he got out of the car to give PO Deleon their licenses and to get his badge number. PO Deleon again said, “You want my fucking badge number,” and never verbally providing his information. § 87(2)(b) could see it on his nameplate and recorded it in his BlackBerry. He states that PO Deleon saw him do so.

Once he had recorded PO Deleon’s information, § 87(2)(b) went back to his vehicle. He and § 87(2)(b) remained in the car for a few minutes. One of the officers asked him to move his vehicle behind the police car to avoid blocking traffic further, and he complied. He recalled that cars had been going around his vehicle while it was parked in the third lane.

PO Ramirez asked § 87(2)(b) and § 87(2)(b) if they wanted to summon a supervisor to handle the situation and they told him they did. He asked them to remain in the car and wait. After a few minutes, SGT Joel Polanco arrived and they exited the vehicle and waited to speak with him. He spoke first to PO Deleon and PO Ramirez and then approached § 87(2)(b) and § 87(2)(b). He spoke to them for approximately five minutes as they told him what happened.

In his CCRB statement, § 87(2)(b) added that SGT Polanco returned to the officers and when he approached § 87(2)(b) and § 87(2)(b) for a second time, he asked them if they were going to “press charges,” or file a complaint, and § 87(2)(b) stated that they were. SGT Polanco told them that if they were going to do so, PO Deleon was going to “press charges” against them as well.

PO Deleon placed § 87(2)(b) and § 87(2)(b) under arrest. PO Deleon was “more relaxed, more composed” and did not curse after SGT Polanco arrived at the scene. PO Ramirez transported § 87(2)(b) and § 87(2)(b) in the police vehicle to the station house and PO Deleon did the same with § 87(2)(b) s car. The entire incident on the street lasted approximately 20 to 30 minutes. § 87(2)(b) noticed that during the incident people would “slow up” to see what was going on but stated that a crowd did not gather.

When they arrived at the 17th Precinct station house, PO Deleon processed § 87(2)(b) and § 87(2)(b).

Police Officer Statements

PO Adriano Delano, 17th Precinct, Subject Officer

Memo Book

PO Deleon had several entries in his memo book regarding this incident (encl.12a-12d). They are as follows: 8:18 PM: Handling an accident at East 54th and 3rd Avenue. 9:11 PM: two under § 87(2)(b) and § 87(2)(b) arrested). 11:10 PM: Start interview with lawyer. 11:15 PM: Finish interview with lawyer. 1:50 AM: Prints are done on both defendants.

Arrest Reports

PO Deleon composed the arrest reports for § 87(2)(b) and § 87(2)(b) (encl.13a-13f). The narrative indicates that at the time and place of occurrence, PO Deleon was conducting an accident investigation when a black SUV pulled up to the passenger side of the police vehicle. § 87(2)(b) started yelling at the arresting officer about the traffic condition one block north from the accident investigation scene. At the same time § 87(2)(b) exited the vehicle and started yelling, cursing, flailing his arms, causing public alarm and interrupting the arresting officer from continuing to conduct an accident investigation. PO Deleon ordered § 87(2)(b) to move his vehicle and ordered § 87(2)(b) to get back in the car and both refused.

CCRB Statement

PO Deleon is a § 87(2)(b) white male with black hair and brown eyes. He stands § 87(2)(b). PO Deleon was interviewed at the CCRB on January 28th, 2008 (encl.14a-14c).

On December 12th, 2007, PO Deleon worked from 3:00 PM to 11:35 PM in uniform in a marked patrol vehicle with PO Michael Ramirez. They were assigned to sector G, patrolling from East 53rd Street to East 59th Street in Manhattan. PO Ramirez operated the vehicle. At approximately 8:30 PM, PO Deleon and PO Ramirez were parked on the west side of 3rd Avenue at East 54th Street conducting a police accident investigation. PO Deleon had just begun conducting the investigation and was filling out paperwork in his vehicle. The two cars that had been involved in the accident were parked in front of the patrol vehicle and the two people who were involved were still on the scene. A black SUV pulled up to the right of the police vehicle. When PO Deleon noticed the vehicle, he rolled his window down.

The male driver of the vehicle, identified as § 87(2)(b) said “You guys have got to be kidding me; you don’t see what’s going on behind you?” He was referring to traffic behind them on 53rd Street. PO Deleon told him he was conducting an accident investigation, but § 87(2)(b) was cursing about the traffic and how the officers were not doing anything about it, stating, “You’ve got to be fucking kidding me.”

After five or six seconds § 87(2)(b) “came out of nowhere” and walked to the space between the patrol car and the black SUV and bent down to address PO Deleon inside the car. PO Deleon did not know she had come from the SUV because he had been unable to see her in the vehicle due to the SUV being higher up than the patrol car. § 87(2)(b) said “You guys have got to be fucking kidding me, what the fuck is going on, you guys are not fucking doing anything in the city all this fucking traffic.” PO Deleon described her demeanor as “very upset,” and described her voice level as “above her lungs.” He could not recall what else she said, but “every other word was fuck.”

PO Deleon could not exit his car because of how close the SUV was to his door. He asked § 87(2)(b) to back up his vehicle. § 87(2)(b) did not do so, and § 87(2)(b) continued to “scream” at the officer, waving her hands and arms at shoulder level. Less than a minute later, PO Deleon opened his door a little and was able to get out of the vehicle while PO Ramirez remained inside. He stated that § 87(2)(b) was standing towards the front of the car, so his car door could not have come into contact with her when he opened it. He was approximately three or four feet away from § 87(2)(b) and asked her to get back in her SUV.

§ 87(2)(b) exited the car seconds later and began “screaming and cursing” at the officer, also moving his arms and using the word fuck “a lot of times.” PO Deleon noted that during this time there were approximately 10 people gathered on the sidewalk on the west side of the street. When asked to describe his demeanor, PO Deleon stated that he “was still in shock” because of the way they were speaking to him. He continued to ask § 87(2)(b) and § 87(2)(b) to return to their vehicle in a “conversational voice.”

PO Deleon asked both § 87(2)(b) and § 87(2)(b) for their identification, which they both had on their person and provided. He stated that he wanted their IDs to ensure that they did not leave the scene. PO Deleon could not recall where § 87(2)(b) procured her identification from. He then asked them again to return to their vehicle. § 87(2)(b) told PO Deleon that she was going to call IAB and then returned to her car with § 87(2)(b). He stated that he did not hear any radio activity or become aware of § 87(2)(b) calling IAB or 911. § 87(2)(b) then backed the car up behind the police vehicle. PO Deleon returned to his car and called his sergeant, SGT Polanco “to make sure [he] wasn’t doing anything wrong.” PO Deleon then waited in his marked patrol vehicle until SGT Polanco arrived approximately five minutes later in a police vehicle.

SGT Polanco spoke to PO Deleon for five minutes. PO Deleon remained in his car during this time and explained what had happened. SGT Polanco told him to arrest § 87(2)(b) and § 87(2)(b) for obstruction of governmental administration and disorderly conduct. SGT Polanco went to § 87(2)(b) and

§ 87(2)(b)'s vehicle to speak with them. When PO Deleon approached to place them under arrest, § 87(2)(b) stated, "I'm sorry, I want to throw this out." PO Deleon indicated that she was directing her apology at him. SGT Polanco remained standing behind PO Deleon as PO Deleon handcuffed § 87(2)(b) and § 87(2)(b). PO Deleon and PO Ramirez then drove the two back to the 17th Precinct station house.

PO Deleon processed § 87(2)(b) and § 87(2)(b) at the precinct but did not have any verbal interaction with them. He stated that they spoke to their lawyer.

PO Deleon denied using any curse words, specifically the word "fuck" at any point during the incident. Despite the fact that he handcuffed both individuals, PO Deleon stated that "there was no physical contact whatsoever" between himself and either § 87(2)(b) or § 87(2)(b) during the incident. He specifically denied touching § 87(2)(b) and § 87(2)(b) on their chest and arms. He denied that either § 87(2)(b) or § 87(2)(b) ever asked for his name and shield number and also denied refusing to provide it. PO Deleon denied indicating that they would be arrested for making a call to IAB. He denied that any other civilians approached him about the traffic situation.

PO Michael Ramirez, 17th Precinct, Witness Officer

Memo Book

PO Ramirez did not have any relevant entries in his memo book regarding this incident (encl.18a-18b).

CCRB Statement

PO Ramirez is a § 87(2)(b) Hispanic male with black hair and hazel eyes. He stands § 87(2)(b). PO Ramirez was interviewed at the CCRB on February 11th, 2008 (encl.19a-19c). § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) the vehicle's occupants, told the officers that they had been in traffic for 45 minutes and that the officers weren't doing their job. PO Ramirez stated that this was "road rage." PO Ramirez added that there was a "traffic condition" approximately a block behind where the officers were parked but that the officers were not aware of it before § 87(2)(b) and § 87(2)(b) brought it to their attention because they were writing an accident report.

§ 87(2)(b) got out of the SUV "yelling, screaming, cursing...flailing her arms" at the officers. She stated, "Are you fucking kidding me? You guys are supposed to be the fucking police." PO Ramirez inferred from her statements that § 87(2)(b) believed that the officers were "sitting in the police car doing nothing" and should be on foot posts directing traffic. PO Deleon told her to "get back in [their] car and drive off."

PO Deleon stepped out of his vehicle and told § 87(2)(b) to get back in her car, which she did not do. Approximately 25 seconds later, PO Ramirez also exited the vehicle and stood on the driver's side of the vehicle. PO Deleon ordered § 87(2)(b) to get back in the car, which he did after approximately two minutes. He also ordered him to move the vehicle which until that point was triple parked in the street. PO Deleon continued to tell § 87(2)(b) to get back in her vehicle. He repeated this at least five times. PO Ramirez stated that during the incident a crowd formed on the sidewalk, but stated that he just "glanced" at them and was unable to say how many people there were.

§ 87(2)(b) was "screaming" and PO Ramirez could see her get on the phone. He stated that § 87(2)(b) indicated that she wanted to make a complaint but did not clarify how he knew this. PO Deleon called the officers' supervisor on his cell phone. PO Ramirez could not recall if they put a call over the radio.

It took fewer than five minutes for the officers' supervisor, SGT Polanco, to respond. During this time, § 87(2)(b) remained in the street, pacing and "screaming." § 87(2)(b) got out of the vehicle for the second time after he moved it.

PO Ramirez told him what had happened and SGT Polanco told him they were going to be arrested. There was no discussion of the charges being brought against them. PO Ramirez and PO Deleon then approached § 87(2)(b) and § 87(2)(b) and placed them under arrest. PO Ramirez added that there was "no resistance." PO Ramirez drove § 87(2)(b) and § 87(2)(b) to the station house.

PO Ramirez remained within feet of PO Deleon throughout the incident and was able to see him the entire time. He denied seeing PO Deleon have any physical contact with § 87(2)(b) or § 87(2)(b). PO Ramirez denied that PO Deleon cursed during the incident.

SGT Joel Polanco, 17th Precinct, Witness Officer

Memo Book

SGT Polanco had the following entry in his memo book regarding the incident (encl.15a-15c).
9:11 PM: arrest by Deleon, Ramirez. East 53rd and 3rd Avenue, IAB Williams, command central.

CCRB Statement

SGT Polanco is a § 87(2)(b) Hispanic male with brown eyes and brown hair. He stands § 87(2)(b) § 87(2)(b) SGT Polanco was interviewed at the CCRB on February 8th, 2008 and again on April 2nd, 2008 (encl.16a-17b). Prior to his second CCRB statement, SGT Polanco reviewed his previously taped statement. The following combines facts provided in both testimonies.

On December 12th, 2007 SGT Polanco worked as patrol supervisor from 2:50 PM to 11:47 PM. He was in uniform in a marked police vehicle operated by PO Robert Amrhein. SGT Polanco was notified by the radio dispatcher to respond to East 53rd Street and 3rd Avenue. He did not recall what details regarding the situation were provided at the time. SGT Polanco was also alerted by the radio dispatcher to contact IAB when he arrived at the location. SGT Polanco did not recall if he alerted PO Amrhein that IAB had been contacted.

SGT Polanco did not recall how long it took to respond to the scene. When he arrived, PO Deleon and PO Ramirez were outside of their vehicle but SGT Polanco could not recall precisely where they were. § 87(2)(b) and § 87(2)(b) were outside of their vehicle in the street as well. Their SUV was at this point parked either in front or behind PO Deleon and PO Ramirez's patrol car in the second lane of traffic. SGT Polanco could not recall what § 87(2)(b) and § 87(2)(b) were doing when he arrived on the scene and did not recall seeing them on the phone.

SGT Polanco spoke first to both police officers and they both provided him the same details regarding the situation. SGT Polanco stated that the officers were "in shock" at what had happened. The officers told him, "I can't believe what this lady did." SGT Polanco could not recall the tone of voice or demeanors of the officers while they were speaking to him. He could not recall if he discussed the fact that IAB had been contacted regarding this incident with PO Deleon.

SGT Polanco was unable to recall what PO Deleon reported that § 87(2)(b) had been saying. He stated that neither the officers nor § 87(2)(b) or § 87(2)(b) mentioned at any point that curse words had been used during the incident. SGT Polanco was shown the OLBS worksheet, on which it states that § 87(2)(b) and § 87(2)(b) had been cursing. He stated that "not everything that is in the report is told to me, like the date of birth."

When SGT Polanco spoke to § 87(2)(b) she "basically confessed to obstructing the officers from performing their duties and blocking 3rd Avenue." § 87(2)(b) told him she was "outraged" at the traffic and that she was agitated when she addressed the officers. § 87(2)(b) confirmed that she was "very upset." Neither § 87(2)(b) nor § 87(2)(b) told SGT Polanco that PO Deleon had pushed them.

As soon as § 87(2)(b) finished telling SGT Polanco what had happened, in essence corroborating the officer's story, he instructed PO Deleon to place § 87(2)(b) and § 87(2)(b) under arrest for obstruction of governmental administration and disorderly conduct. SGT Polanco explained to § 87(2)(b) and § 87(2)(b) that the officers had been investigating a traffic accident and he was "shocked" that after he explained this, they calmed down and became "totally quiet." He stated that "they realized the big mistake they made."

PO Robert Amrhein, 17th Precinct, Witness Officer

Memo Book

PO Amrhein did not have any relevant entries in his memo book (encl.20a-20b).

CCRB Statement

PO Amrhein is a § 87(2)(b) white male with brown hair and blue eyes who stands § 87(2)(b) § 87(2)(b) On December 12th, 2007 PO Amrhein worked from 3:00 PM to 11:35 PM in uniform in a marked police vehicle (#1213). He was assigned as SGT Joel Polanco's operator. PO Amrhein and SGT Polanco were alerted to an incident involving PO Deleon, PO Ramirez and § 87(2)(b) and § 87(2)(b) on East 53rd Street and 3rd Avenue between 8:00 PM and 9:00 PM. PO Amrhein was unable to recall how they were alerted to the incident. While en route to the scene of the incident, SGT Polanco was alerted to the fact that IAB had been contacted regarding the incident. SGT Polanco informed PO Amrhein of this, but PO Amrhein could not recall what he said specifically or how the sergeant had been alerted. He later added, "It's usually radio... [the SGT] calls to central, she tells us its an IAB job." PO Amrhein does not know if SGT Polanco contacted communications or IAB while at the scene.

It took the officers approximately 10 to 15 minutes to respond to the scene. PO Amrhein stopped his vehicle in front of PO Deleon and PO Ramirez's vehicle, which was double parked on the street, and SGT Polanco exited the car. § 87(2)(b)'s vehicle was parked in the second lane of traffic directly behind PO Deleon and PO Ramirez's vehicle. § 87(2)(b) and § 87(2)(b) were inside of the vehicle.

PO Amrhein parked the patrol car on the street corner as SGT Polanco spoke with PO Deleon and PO Ramirez. They spoke for approximately five minutes and PO Amrhein was unable to hear what they were saying. As PO Amrhein exited his vehicle after parking, SGT Polanco was approaching § 87(2)(b) and § 87(2)(b) who were at this point outside of their SUV.

PO Amrhein approached PO Deleon on the sidewalk. PO Deleon explained what had happened to PO Amrhein. PO Amrhein then watched as SGT Polanco spoke to § 87(2)(b) and § 87(2)(b) approximately 25 feet away in the street by the driver's side of their SUV. He was unable to hear what they were saying, but stated that he "didn't notice anything outrageous" about their demeanors.

After speaking to § 87(2)(b) and § 87(2)(b) for a little over five minutes, SGT Polanco returned to where PO Deleon, PO Ramirez and PO Amrhein were standing. SGT Polanco instructed PO Deleon and PO Amrhein officers to arrest § 87(2)(b) and § 87(2)(b) for obstruction of governmental administration. PO Amrhein does not recall the officer saying they were being arrested for disorderly conduct.

PO Deleon and PO Ramirez placed § 87(2)(b) and § 87(2)(b) under arrest, during which time they remained calm. PO Amrhein and SGT Polanco returned to the precinct approximately 15 minutes after they had arrived on the scene. While at the station house, PO Amrhein saw § 87(2)(b) and § 87(2)(b) as they were brought in front of the desk sergeant and escorted to their cells. He did not interact with them while at the precinct.

Police Documents

17th Precinct Roll Call, 12/12/2007

The 17th Precinct roll call from December 12th, 2007 lists SGT Polanco as the patrol supervisor assigned to vehicle #1213, operated by PO Amrhein. It lists PO Deleon and PO Ramirez as assigned to patrol sector GH in vehicle #2174 (encl.22a-22f).

17th Precinct Command Log, 12/12/2007

The 17th Precinct command log from December 12th reflects that PO Deleon arrested § 87(2)(b) and § 87(2)(b) at 9:30 PM (encl.23a-23e). Their physical/mental conditions are listed as "normal."

Accident Index

The accident report index from December 12th indicates that PO Deleon (identified by tax number) completed the report for accident # § 87(2)(b). The civilians involved are identified by last name as § 87(2)(b) and § 87(2)(b) (encl.24a-24e).

Civilian CCRB History

This is the first complaint filed by § 87(2)(b) with the CCRB (encl.2).

Police Officer CCRB History

PO Adriano Deleon has been a member of the NYPD for two years. To date he has no substantiated cases with the CCRB (encl.1).

§ 87(2)(b)

Disposition of Charges

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

PO Deleon was identified by name by § 87(2)(b) and § 87(2)(b) as the officer with whom they interacted primarily on the street. He was also confirmed as their arresting officer on their arrest reports and in his statement to the CCRB and affirmed his role in the interaction in his statement as well. He identified PO Michael Ramirez as his partner on December 12th, a fact confirmed in PO Ramirez's statement as well as the 17th Precinct roll call. PO Deleon also identified SGT Polanco as the responding sergeant, which was confirmed by both SGT Polanco and the 17th Precinct roll call.

It is undisputed that § 87(2)(b) and § 87(2)(b) pulled up in their SUV alongside PO Deleon and PO Ramirez, who were inside of their police vehicle at the time. All parties agree that both § 87(2)(b) and § 87(2)(b) addressed PO Deleon regarding a traffic situation on 3rd Avenue. It is undisputed that at some point, all parties – including both PO Deleon and his partner PO Ramirez, § 87(2)(b) and § 87(2)(b) – got out of their vehicles and that some sort of altercation occurred between PO Deleon, § 87(2)(b) and § 87(2)(b) and § 87(2)(b).

Despite the fact that § 87(2)(b) indicated in his CCRB statement that he heard § 87(2)(b) several times ask for PO DeLeon's name and shield number and never heard it provided, § 87(2)(b) § 87(2)(b) in fact stated that she did not need to request his name and badge number because she was able to see it in plain view. § 87(2)(b) relayed that she heard § 87(2)(b) ask for this information but did not indicate that the answer was not provided. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) Both § 87(2)(b) and § 87(2)(b) allege that PO Deleon cursed at them, using the word “fuck” (over a dozen times, according to § 87(2)(b)). § 87(2)(b) alleges that PO Deleon was “irate,” while § 87(2)(b) noted that he “snapped” when § 87(2)(b) addressed him. However, PO Deleon and PO Ramirez both denied that PO Deleon cursed at § 87(2)(b) and § 87(2)(b).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Both PO Deleon and PO Ramirez deny that there was any physical contact whatsoever. They recounted that PO Deleon told § 87(2)(b) and § 87(2)(b) several times to return to their vehicle before they actually did so. § 87(2)(g)

[REDACTED]

Allegation A: PO Adriano Deleon spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

[REDACTED] It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B: PO Adriano Deleon used physical force against § 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

[REDACTED] it is recommended that **Allegation B** be closed as **Unsubstantiated**.

Investigator:	Date:
Supervisor:	Date:
Reviewed by:	Date:
Reviewed by:	Date: